

STATE OF NEW YORK

5110--A

2025-2026 Regular Sessions

IN SENATE

February 19, 2025

Introduced by Sens. SCARCELLA-SPANTON, LIU -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to categorizing the assault of certain employees of the New York city department of buildings or the New York city department of housing preservation and development as a class D felony

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 120.05 of the penal law is amended by adding four new subdivisions 3-d, 3-e, 11-d and 11-e to read as follows:

3-d. With intent to prevent an employee of the New York city department of housing preservation and development in an inspectorial, technical, investigative, or social service/community title, including labor compliance officers engaged in development or construction projects, from performing their lawful duties such person causes physical injury to such employee; or

3-e. With intent to prevent an employee of the New York city department of buildings in an inspectorial, technical, investigative, or community title from performing their lawful duties such person causes physical injury to such employee; or

11-d. With intent to cause physical injury to an employee of the New York city department of housing preservation and development in an inspectorial, technical, investigative, or social service/community title performing their lawful duties such person causes physical injury to such employee; or

11-e. With intent to cause physical injury to an employee of the New York city department of buildings in an inspectorial, technical, investigative, or community title performing their lawful duties such person causes physical injury to such employee; or

§ 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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